

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Arthur Albano	Team: Squad #03	CCRB Case #: 201410629	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Saturday, 09/27/2014 11:30 PM	Location of Incident: Corner of Greenwich & Christopher Street	18 Mo. SOL 3/27/2016	Precinct: 06		
Date/Time CV Reported Thu, 10/16/2014 6:42 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Thu, 10/16/2014 6:43 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM William Morris	16924	952037	006 PCT
2. POM Liam Cawley	03001	948769	006 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM William Morris	Abuse: PO William Morris stopped the car in which § 87(2)(b) and § 87(2)(b) were occupants.	A . Exonerated
B . POM Liam Cawley	Abuse: PO Liam Cawley stopped the car in which § 87(2)(b) and § 87(2)(b) were occupants.	B . Exonerated
C . POM William Morris	Abuse: PO William Morris searched the car in which § 87(2)(b) and § 87(2)(b) were occupants.	C . Exonerated
D . POM William Morris	Abuse: PO William Morris refused to provide his name and/or shield number to § 87(2)(b)	D . Unsubstantiated

Case Summary

On September 27, 2014, at approximately 11:30 p.m., in the vicinity of Greenwich Street and Christopher Street, in Manhattan, § 87(2)(b) was driving § 87(2)(b)'s vehicle, a white Nissan Maxima with § 87(2)(b) in the front passenger seat and § 87(2)(b) in the rear passenger side seat.

Once at the intersection of Christopher Street and Greenwich Street a marked police vehicle containing PO William Morris and PO Liam Cawley, of the 6th Precinct, flashed its lights and commanded the vehicle to pulled over via the vehicle's PA system (**Allegations A and B**). Subsequent to the stop, PO Cawley removed § 87(2)(b) and § 87(2)(b) from the vehicle and placed them in handcuffs. PO Morris directed § 87(2)(b) to open the trunk of the vehicle, and § 87(2)(b) did not comply with the request. As a result PO Morris allegedly reached into the vehicle grabbed the car remote, went to the rear of the vehicle and opened the vehicle's trunk (**Allegation C**).

Directly after, PO Morris pulled § 87(2)(b) out of the vehicle and placed her in handcuffs as well. Multiple other officers arrived at the scene, and after a conversation amongst themselves, the officers released § 87(2)(b) and § 87(2)(b) without summonses or arrests, and PO Morris released § 87(2)(b) with a summons for § 87(2)(b)

Mediation, Civil, Criminal Histories

- A Notice of Claim was filed by § 87(2)(b) and § 87(2)(b) regarding this incident. 50-H hearings were conducted for both § 87(2)(b) and § 87(2)(b) on § 87(2)(a) Gen.Mun. § 87(2)(b) (Board Review 1). This resulted in the case being unsuitable for ADR.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first complaint filed by or including § 87(2)(b) or § 87(2)(b)
- PO Morris has been a member of the service for three years and there are no substantiated CCRB allegations against him. § 87(2)(g)
- PO Cawley has been a member of the service for four years and there are no substantiated CCRB allegations against him. § 87(2)(g)

Potential Issues

§ 87(2)(b) and § 87(2)(b) named § 87(2)(b) in their complaint as the third passenger in their vehicle, and also stated that the vehicle involved in the vehicle stop and search belonged to § 87(2)(b). An individual that identified herself as § 87(2)(b) was contacted by the CCRB provided a phone statement regarding the incident § 87(2)(g)

However, she was uncooperative with an in-person statement, missing an appointment and not replying to subsequent phone calls from the CCRB.

§ 87(2)(b) was also not included in the notice of claim filed by § 87(2)(b) and § 87(2)(b)

§ 87(2)(b)

PO Cawley and PO Morris denied a person named § 87(2)(b) being identified on the scene. According to both officers, § 87(2)(b) was identified as the third passenger, and the officers both wrote down her information, including her address and Date of Birth, neither of

which matched the information provided by § 87(2)(b) or § 87(2)(b) (Board Review 3 and 4). Therefore, the investigation determined that § 87(2)(b) provided the officers with incorrect information when she verbally responded to their request.

Investigative Findings and Recommendations

Allegations Not Pleaded

§ 87(2)(b) alleged that during this incident, § 87(2)(b) was placed in a chokehold. However, when speaking to the alleged victim, she described the force to be PO Cawley grabbing the back of her neck, making no physical contact with her throat or windpipe (Board Review 5). § 87(2)(g)

Identification of Subject Officers

The officers testified that it was a collective decision to stop the vehicle § 87(2)(b) was driving. § 87(2)(g)

PO Morris admitted to speaking with the driver of the vehicle, § 87(2)(b) during the vehicle stop, while PO Cawley admitted to interacting with the passengers. § 87(2)(g) § 87(2)(b) stated that the officer that approached her side of the vehicle, searched the trunk of her vehicle, and refused to provide his name and shield number upon request. § 87(2)(g)

Allegation A- Abuse of Authority- PO William Morris stopped the car in which § 87(2)(b) and § 87(2)(b) were occupants.

Allegation B- Abuse of Authority- PO Liam Cawley stopped the car in which § 87(2)(b) and § 87(2)(b) were occupants.

Allegation C- PO William Morris searched the car in which § 87(2)(b) and § 87(2)(b) were occupants.

The following facts are undisputed, § 87(2)(b) (Board Review 6), § 87(2)(b) (Board Review 7) and § 87(2)(b) (Board Review 3) were driving in a white 4-door Nissan sedan bearing the license plate number “§ 87(2)(b) § 87(2)(b) the driver, did not commit any Vehicle and Traffic Law infractions in the officers’ presence. PO Cawley and PO Morris stopped their vehicle, removed § 87(2)(b) and § 87(2)(b) from the vehicle and placed them in handcuffs. PO Morris commanded § 87(2)(b) to open the trunk of her vehicle, § 87(2)(b) did not comply with the request, and PO Morris obtained the car beeper from inside the vehicle, opened the trunk briefly then closed it. § 87(2)(b) was then removed from the vehicle, and placed in handcuffs. Sometime later, an additional unit arrived on the scene, and a conversation amongst the officers occurred. At the conclusion of the officers’ conversation, § 87(2)(b) and § 87(2)(b) were released without summonses and § 87(2)(b) was released with a summons (Board Review 8) for § 87(2)(b)

§ 87(2)(b) and § 87(2)(b) did not provide any known reason for the officers stopping them or the officers’ subsequent steps on scene. § 87(2)(g)

§ 87(2)(b). According to the officers, there was a report of an assault with a bat, and a description of the vehicle the female perpetrator leaving the scene, Christopher Street and Bleecker Street. The vehicle description provided was a white Nissan

Altima with License Plate § 87(2)(b) heading southbound on Christopher Street § 87(2)(g)
§ 87(2)(g)

Upon sight of § 87(2)(b)'s vehicle, bearing the description, direction of flight, and proximity to the crime location (.2 miles southwest of the location), the officers stopped them, placed them in handcuffs, and PO Morris searched the trunk for the bat that was allegedly used in the commission of the reported crime.

Officers are permitted to arrest individuals when they have probable cause that they committed a crime People v. De Bour 40 N.Y.2d 210 (1976). An identified citizen informant is presumed to be personally reliable People v. Dixon 289 A.D.2d 937 (4th Dept. 2001) People v. Schwing 14 A.D.3d 867 (3rd Dept. 2005). (Board Review 12)

Circumstances unique to the vehicle context justify a search incident to a lawful arrest when it is reasonable to believe evidence relevant to the crime of arrest might be found in the vehicle. People v. Derrell 26 Misc. 3d 697 (2009) (Board Review 12)

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§ 87(2)(g) It is therefore recommended that **Allegations A, B, and C** be closed as *exonerated*.

Allegation D- Abuse of Authority- PO William Morris refused to provide his name and/ or shield number to § 87(2)(b)

According to § 87(2)(b) at some point during the incident, she requested PO Morris' name and shield number, and PO Morris responded that he would write that information on the summons. § 87(2)(b) was able to identify PO Morris' name and tax number from the summons, and that information was provided to the CCRB upon filing the complaint. § 87(2)(b) did not make a second request for the name and shield number during the incident. § 87(2)(b) was unsure if § 87(2)(b) or § 87(2)(b) heard this request, and neither of them corroborated hearing this request or the officers' response.

Neither PO Morris nor PO Cawley recalled § 87(2)(b) requesting PO Morris' name and shield number, or that he responded that his information would be written on the summons. PO Morris stated that he typically would verbally provide his name and shield number upon request.

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g). It is therefore recommended that **Allegation D** be closed as **unsubstantiated**.

Pod: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date